Zell Miller Scholarship Program
at Public and Private Institutions

REGULATIONS – 4000.

2026 - 2027 Award Year

Effective Date – July 1, 2026

GSFC | Georgia Student Finance Commission

2082 East Exchange Place
Tucker, Georgia 30084

4001. Table of Contents.

4001. Table of Contents. 2

4002. Program Overview. 6

4003. Definitions. (Electronic Link) 7

4004. General Eligibility Requirements. 7

4004.1. Citizenship. 7

4004.2. Georgia Residency. 7

4004.3. Enrollment Status. 8

4004.4. Satisfactory Academic Progress. 9

4004.5. Selective Service Registration. 9

4004.6. Defaulted Loan or Refund Due. 10

4004.7. Georgia Drug-Free Act. 11

4004.8. Incarceration. 11

4005. Program Specific Eligibility Requirements. 12

4005.1. Zell Miller Scholarship Calculation. 12

4005.2. Academic Rigor Requirements. 13

4005.3. First-Tier Academic Requirements. 14

4005.4. First-Tier Academic Requirements: Retroactive Eligibility. 16

4005.5. First-Tier Academic Checkpoints. 17

4005.6. Second-Tier Academic Requirements. 17

4005.7. Second-Tier Academic Checkpoints. 18

4005.8. Third-Tier Academic Requirements. 18

4005.9. Third-Tier Academic Checkpoints. 19

4005.10. Fourth-Tier Academic Requirements. 19

4005.11. STEM Courses. 21

4005.12. Grade Changes and Incompletes. 22
4005.13. Attempted-Hours Limit. 23
4005.14. Attempted-Hours Calculation. 23
4005.15. Combined Paid-Hours Limit. 24
4005.16. Attainment of a Baccalaureate Degree. 25
4005.17. Expiration of Eligibility Limits. 26
4005.17.1. Ten Year Limit. 26
4005.17.2. Seven Year Limit. 26
4005.17.3. Military Service Extension Request. 26
4005.17.4. ADA Limited Extension Request. 27
4005.17.5. No Expiration Limit. 27
4005.17.6. Eligibility after Losing Zell Miller Scholarship at Two Checkpoints. 27
4006. Eligible and Ineligible Coursework. 28
4006.1. Transient Coursework. 28
4006.2. Distance Learning Coursework. 28
4006.3. Study Away Coursework. 28
4006.4. Board of Regents Test Preparation Coursework. 29
4006.5. First Professional Degree Program. 29
4006.6. Joint Enrollment and Dual Credit Enrollment Coursework. 29
4006.7. Learning Support Coursework. 30
4006.8. Coursework Exemptions. 30
4006.9. Continuing Education and Audit Coursework. 30
4006.10. Total Withdrawal from Coursework. 30
4007. Student Application Requirements. 31
4007.1. Application Forms. 31
4007.2. Application Deadline Date. 32

4007.3. Application for Subsequent Years. 32
4008. Award Requirements. 33
4008.1. Awards at Eligible USG or TCSG Institutions. 33
4008.2. Awards at Eligible Private Postsecondary Institutions. 33
4008.3. Awards Per School Term. 34
4008.4. Student Notification of Award. 34
4008.5. Effect of Other Aid on Zell Miller Scholarship Eligibility. 35
4009. College HOPE Eligibility Calculation Service (CHECS) Reporting Requirements. 36
4009.1. CHECS. 36
4010. Invoicing Requirements 37
4010.1. Submission of Invoices. 37
4010.2. Payment of Invoices. 38
4010.3. Tuition Payments. 38
4011. Return of Funds Requirements. 39
4011.1. Calculation of Return of Funds. 39
4011.2. Emergency Military Duty. 39
4012. Reconciliation Requirements. 41
4012.1. Term Reconciliation. 41
4012.2. Fiscal Year End Reconciliation. 41
4013. Records Retention Requirements. 42
4013.1. Length of Retention. 42
4013.2. Documentation. 42
4013.3. Extended Retention. 43
4014. Administrative Reviews and Exceptions. 44
4014.1. Administrative Reviews. 44

4014.2. Requesting an Exception. 44
4014.3. Guidelines for Approval of an Exception Request. 47
4014.4. Guidelines for Denial of an Exception Request. 49
4015. Compliance Reviews. 51
4015.1. Compliance Review Policy. 51
4015.2. Compliance Review Process. 51
4015.3. Institutional Repayment. 51

4002. Program Overview.

The Zell Miller Scholarship Program is a merit-based scholarship program with specific academic and grade point average eligibility requirements. The purpose of the Zell Miller Scholarship Program is to encourage the academic achievement of Georgia's high school students and Georgians seeking Degrees from postsecondary institutions located in Georgia.

An eligible student seeking a Degree from a University System of Georgia (USG) or Technical College System of Georgia (TCSG) institution may receive Zell Miller Scholarship funds covering the Standard Undergraduate Tuition amount. An eligible student seeking a Degree from a Private Eligible Postsecondary Institution may receive Zell Miller Scholarship funds based on the amount established by the Georgia General Assembly.

Effective FY 2027, the High School Calculated HOPE GPA includes identified Advanced Fine Arts courses with a standardized written end of course assessment beginning with the class of 2027.

The Zell Miller Scholarship Program, for students attending Georgia's Eligible Postsecondary Institutions, was created beginning with the 2011-2012 Award Year (State Fiscal Year 2012), with awards first available Fall term 2011. The program is fully funded by the Georgia Lottery for Education and administered by the Georgia Student Finance Commission (GSFC), in accordance with Official Code of Georgia Annotated (O.C.G.A.) §20-3-519, et seq.

4003. Definitions. (Electronic Link)

4004. General Eligibility Requirements.

4004.1. Citizenship.

1. A student must be a United States Citizen, born or naturalized, or an Eligible Non-Citizen according to the Federal Title IV Regulations, as of the first day of classes of the school term for which the Zell Miller Scholarship is sought.

4004.2. Georgia Residency.

1. A student entering the Zell Miller Scholarship Program at any Tier and attending a USG or TCSG institution who meets the Georgia Residency requirements of the Board of Regents (BOR) or State Board of TCSG at the time of his or her high school graduation or Home Study program completion, must also meet such Georgia Residency requirements for 12 consecutive months immediately prior to the first day of classes of the school term for which the Zell Miller Scholarship is sought.

2. A student entering the Zell Miller Scholarship Program at any Tier and attending a USG or TCSG institution, who did not meet the Georgia Residency requirements of the BOR or State Board of TCSG at the time of high school graduation or Home Study program completion, must meet such Georgia Residency requirements for 24 consecutive months immediately prior to the first day of classes of the school term for which the Zell Miller Scholarship is sought.

3. A student entering the Zell Miller Scholarship Program at any Tier and attending a private Eligible Postsecondary Institution who met the Georgia Residency requirements of the *Georgia Residency Requirements for State Programs at Private Institutions Regulations* at the time of his or her high school graduation or Home Study program completion, must also meet such Georgia Residency requirements for 12 consecutive months immediately prior to the first day of classes of the school term for which the Zell Miller Scholarship is sought.

4. A student entering the Zell Miller Scholarship Program at any Tier and attending a private Eligible Postsecondary Institution who did not meet the Georgia Residency requirements of the *Georgia Residency Requirements for State Programs at Private Institutions Regulations* at the time of high school graduation or Home Study program completion, must meet such Georgia Residency requirements for 24 consecutive months immediately prior to the first day of classes of the school term for which the Zell Miller Scholarship is sought.

5. Military Personnel, Military Spouses, or Dependent Children, shall be treated as a Georgia Resident for purposes of Zell Miller Scholarship eligibility if:

    a. The Military Personnel is stationed in Georgia on active duty, or lists Georgia as his or her home of record; or

b. A USG or TCSG institution grants a Military Personnel Out-of-State Tuition Waiver or Exemption.

6. No other Out-of-State Tuition Waiver, other than for Military Personnel and their dependents, applies to students in the Zell Miller Scholarship Program.

7. Members of the Georgia National Guard shall be treated as a Georgia resident for purposes of Zell Miller Scholarship eligibility.

8. Members of a reserve component of the United States Armed Forces, assigned to a reserve unit located in Georgia, shall be treated as a Georgia resident for purposes of Zell Miller Scholarship eligibility.

9. A student, who was correctly determined to meet the Georgia Residency requirements for purposes of Zell Miller Scholarship eligibility and began receiving Zell Miller Scholarship payment, will continue to meet the Georgia Residency requirements for purposes of Zell Miller Scholarship eligibility, unless he or she has a break in Enrollment of two or more consecutive semesters or quarters and resides outside of Georgia for 12 or more consecutive months.

   a. If such student later returns to Georgia, he or she must re-establish Georgia Residency for 12 consecutive months, (refer to *Section 4004.2.1. or 4004.2.3.*), before regaining Zell Miller Scholarship eligibility.

10. A student who has a break in Enrollment of two or more consecutive semesters or quarters, and who resides outside Georgia for less than 12 consecutive months, and then later returns to Georgia and Enrolls in an Eligible Postsecondary Institution within 12 consecutive months from his or her most recent date of Enrollment in an Eligible Postsecondary Institution will continue to meet the Georgia Residency requirements for purposes of Zell Miller Scholarship eligibility.

4004.3. Enrollment Status.

1. A student must be Enrolled at a USG, TCSG, or Private Eligible Postsecondary Institution in a Matriculated status leading to a Degree.

2. A student Enrolled at a USG or TCSG Eligible Postsecondary Institution is eligible for the Zell Miller Scholarship regardless of the number of credit hours Enrolled during a school term. Half-Time or Full-Time Enrollment is not a requirement.
3. A student Enrolled at a Private Eligible Postsecondary Institution must be classified as Full-Time at the end of the Private Eligible Postsecondary Institution's drop/add period in order to be eligible for the Full-Time award amount.

4. A student Enrolled at a Private Eligible Postsecondary Institution must be classified as Half-Time at the end of the Private Eligible Postsecondary Institution's drop/add period in order to be eligible for the Half-Time award amount.

5. For the school term in which a student reaches the Attempted-Hours or Combined Paid-Hours limit of 127 semester or 190 quarter hours, the student can be paid only for the hours up to the Attempted-Hours or Combined Paid- Hours limit. A student who will reach the Attempted-Hours or Paid-Hours limit with a fraction of an hour remaining can be paid for a full hour.

4004.4. Satisfactory Academic Progress.

1. A student must maintain Satisfactory Academic Progress (SAP), as defined and certified by his or her Eligible Postsecondary Institution.

    a. For state aid programs, Eligible Postsecondary Institutions may establish an appeal process for students with hours attempted prior to high school graduation or home study completion, including dual enrollment, AP, IB, and/or other such coursework that fail to meet the quantitative standard (pace) for degree completion, generally identified as 150 percent of the published length of the program.

    b. The appeal should consider attempted hours toward the program in which the student is enrolled, satisfactory qualitative (grade-based) standards, and the student's satisfactory pace in pursuit of completing the program with and without the hours attempted prior to high school graduation or home study completion, including dual enrollment, AP, IB, and/or other such coursework. Eligible Postsecondary Institutions have sole discretion and responsibility for evaluation and approval of any such appeals.

4004.5. Selective Service Registration.

1. A student must be in compliance with Georgia state law requirements of having registered with the United States Selective Service System requirements, in accordance with O.C.G.A. § 20-3-519.1(b).

2. Selective Service registration, by required males, should be completed prior to the program application deadline in order to be eligible for payment for such school term.

    a. A late disbursement is permitted if the student meets Selective Service requirements any time during the fiscal year.

3. GSFC will maintain Selective Service registration or exemption status information for state aid program applicants/recipients. The registration status will be available to the postsecondary institution in which the student is enrolled in order for the institution to determine program eligibility.

    a. The Institution may collect documentation supporting a student's registration status and submit to GSFC for consideration.

4. Male applicants required to register with the Selective Service System must have a registered or exemption status on file with GSFC to be eligible for state aid programs and for a disbursement invoice to be paid.

4004.6. Defaulted Loan or Refund Due.

1. A student must not be in default on a Federal Title IV or State of Georgia educational loan or owe a refund due to an over-award on a Federal Title IV or State of Georgia student financial aid program, or in any other way be in violation of Federal Title IV Programs Regulations or State of Georgia student financial aid program regulations. A student must meet the requirements of this section at the time funds are disbursed by GSFC on behalf of the student.

2. A student's federal default status can be resolved in one of five ways:

    a. Completing an acceptable rehabilitation plan; or

    b. Having the loan repurchased by the original lender and the default status reversed; or

    c. Consolidating the loan out of a default status; or

    d. Receiving an approved Title IV debt settlement, to include a compromised settlement; or

    e. Making monthly payments over specified period agreed-upon with the lender of the Student's federal loan; each payment must be on time and voluntary to be in a satisfactory repayment plan.

3. A student's State of Georgia refund due status can be resolved by:

    a. Paying the refund due to the Eligible Postsecondary Institution at which the over-award occurred. The Eligible Postsecondary Institution will then forward the payment to GSFC.

4. A student's default status on a State of Georgia loan can be resolved in one of two ways:

    a. Paying off the defaulted loan in full; or
    b. Completing an acceptable rehabilitation plan by making voluntary on time payments over a specified period agreed-upon with GSFA.

5. If such student has repaid the defaulted loan or refund due in full, or resolved the default status, then he or she may be eligible to receive state scholarship, grant or loan funds beginning with the school term in which repayment was made in full but not retroactively for previous school terms.

4004.7. Georgia Drug-Free Act.

1. A student convicted of committing certain felony offenses involving marijuana, controlled substances, or dangerous drugs, may be ineligible for Zell Miller Scholarship payment from the date of conviction to the completion of the following school term, in accordance with the Georgia Drug-Free Postsecondary Education Act of 1990, O.C.G.A. § 20-1-20, et seq.

4004.8. Incarceration.

1. A student seeking a Degree from an Eligible Postsecondary Institution is ineligible for Zell Miller Scholarship payment while Incarcerated. Upon release from incarceration, such student may begin receiving Zell Miller Scholarship payments, if he or she meets all Zell Miller Scholarship eligibility requirements. Degree credit hours attempted while Incarcerated must be counted as Attempted-Hours for purposes of Zell Miller Scholarship eligibility.

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4005. Program Specific Eligibility Requirements.

1. A student cannot enter the Zell Miller Scholarship Program if he or she was not Academically Eligible at the time of high school graduation.

4005.1. Zell Miller Scholarship Calculation.

1. Eligible High Schools located in Georgia are required to provide GSFC with electronic academic transcripts for all graduating students, at the time and in the format prescribed by GSFC. GSFC shall use such transcript data to calculate each student's HOPE Grade Point Average (GPA) for purposes of Zell Miller Scholarship eligibility.

    a. If the transcript for the school from which the student graduated does not show the student's complete academic record for 9th, 10th, 11th, and 12th grades, additional transcripts must be provided from all other schools attended during those years.

    b. Calculation of the HOPE GPA will not occur until official academic transcripts showing a complete high school academic record are received.

2. A student who graduates from an Eligible High School, that is not located in Georgia, shall provide GSFC with an official academic transcript upon high school graduation. GSFC shall use such transcript data to calculate the student's HOPE GPA for purposes of Zell Miller Scholarship eligibility.

    a. If the transcript for the school from which the student graduated does not show the student's complete academic record for 9th, 10th, 11th, and 12th grades, additional transcripts must be provided from all other schools attended during those years.

    b. Calculation of the HOPE GPA will not occur until the student provides official academic transcripts showing a complete high school academic record.

3. When calculating a student's high school HOPE GPA for purposes of Zell Miller Scholarship Scholar designation, and for meeting the Zell Miller Scholarship academic requirements at the First-Tier, GSFC will remove the weighted portion, if any, added by the student's Eligible High School, from any grade earned from Advanced Placement, International Baccalaureate, or Dual Credit Enrollment coursework and convert the grade to a 4.00 scale.

4. GSFC will add a standard weight, up to the maximum 4.00 grade, as indicated in the following chart:

Academic Year Course Attempted	Advanced Placement Courses	International Baccalaureate Courses	Degree Level Dual Credit Enrollment Core Courses
Prior to 2006-2007	1.0	1.0	0
2006-2007 through 2012-2013	.5	.5	0
2013-2014 and later	.5	.5	.5 for students graduating high school July 1, 2013 or later

5. Grades for Honors or other special courses will not be weighted. GSFC will remove the weighted portion, if any, added by the student's Eligible High School from any grade earned from Honors courses or other special courses.

4005.2. Academic Rigor Requirements.

1. Beginning with the High School Graduating Class of 2015, a student meeting the requirements to be a Zell Miller Scholarship Scholar at the time of high school graduation must earn a minimum of two full credits from the academic rigor course categories listed below prior to graduating from high school.

2. For the High School Graduating Class of 2016, a student meeting the requirements to be a Zell Miller Scholarship Scholar at the time of high school graduation must earn a minimum of three full credits from the academic rigor course categories listed below prior to graduating from high school.

3. For the High School Graduating Class of 2017 and beyond, a student meeting the requirements to be a Zell Miller Scholarship Scholar at the time of high school graduation must earn a minimum of four full credits from the academic rigor course categories listed below prior to graduating from high school.

4. Credits received for academic rigor must be selected from one or more of the categories below:

    a. Advanced math, such as advanced algebra and trigonometry, or math III, taken at the high school, or an equivalent or higher course taken for degree level credit at an Eligible Postsecondary Institution; or

b. Advanced science, such as chemistry, physics, or biology II, and certain computer science courses taken at the high school level, or an equivalent or higher course taken for degree level credit at an Eligible Postsecondary Institution; or

c. Foreign language courses taken at the high school, or taken for degree level credit at an Eligible Postsecondary Institution; or

d. Advanced Placement, International Baccalaureate or degree level Dual Credit Enrollment courses in Core subjects.

5. Students that graduate from an Eligible High School, including Home Study students who receive a diploma and transcript from an Accredited High School Program, must meet rigor requirements.

6. The rigor requirement does not extend to students who:

a. Complete a Home Study Program that does not result in a diploma and transcript from an Accredited High School Program; nor

b. Graduate from a high school that is not an Eligible High School; nor

c. Receive a diploma pursuant to a petition to the local school board in accordance with O.C.G.A. § 20-2-281.1.

7. Home Study students who graduate from an Accredited High School Program and submit a transcript for evaluation for purposes of Zell Miller Scholarship eligibility must satisfy the same Academic Rigor requirements as a graduate from an Eligible High School.

4005.3. First-Tier Academic Requirements.

1. Beginning with the High School Graduating class of 2016, in order to meet the academic requirements of the Zell Miller Scholarship at the First-Tier a student must:

a. Graduate from an Eligible High School as the Valedictorian or the Salutatorian. The identified Valedictorian and Salutatorian for each Eligible High School must meet all HOPE eligibility requirements, including the minimum 3.0 GPA requirement; or

b. Graduate from an Eligible High School with a minimum of a 3.70 Calculated HOPE GPA on a 4.00 scale as calculated by GSFC for Zell Miller Scholarship purposes; and

i. Earn a minimum score of 1,200 on a single National Administration of the SAT taken by the time of high school graduation. Points earned in the Essay portion shall not be included in any calculation of a student's score; or

ii. An equivalent composite score on a single National or State/District Administration of the ACT by the time of high school graduation. Equivalent scores are published by the College Board and ACT each January.

(1) GSFC will confirm and publish the equivalent each January based on the concordance guide available by the College Board and ACT.

(2) The use of the concordance guide to set the required ACT score annually will be effective for academic eligibility starting calendar year 2024, and after.

c. Complete a Home Study Program or graduate from a high school that is not an Eligible High School; and

i. Earn a composite scale score in the ninety-third percentile or higher on a single National or State/District Administration of the ACT by the time of high school graduation or home school completion; or

ii. Earn a total score in the ninety-third percentile or higher on the combined critical reading and math portions on a single National Administration of the SAT by the time of high school graduation or home school completion. Points earned in the Essay portion shall not be included in any calculation of a student's score.

2. In order for a student that graduated from an Eligible High School between 2011 and 2015 to meet the academic requirements of the Zell Miller Scholarship at the First-Tier, the student must have:

a. Graduated from an Eligible High School as the Valedictorian or the Salutatorian. The identified Valedictorian and Salutatorian for each Eligible High School must meet all HOPE eligibility requirements, including the minimum 3.0 GPA requirement; or

b. Graduated from an Eligible High School with a minimum of a 3.70 Calculated HOPE GPA on a 4.00 scale as calculated by GSFC for Zell Miller Scholarship purposes; and

i. Earned a composite score of 26 on a single National or State/District Administration of the ACT by the time of high school graduation; or

ii. Earned a minimum score of 1,200 combined critical reading and math on a single National Administration of the SAT by the time of high school graduation. Points earned in the Essay portion shall not be included in any calculation of a Student's score.

3. Students who received a diploma pursuant to a petition to the local school board in accordance with O.C.G.A. 20-2-281.1, the test administration indicated in *Sections 4005.3.1.b.i*. and *4005.3.1.b.ii* or 4005*.3.2.b.i.* and *4005.3.2.b.ii* must have taken the test prior to the date the student would have graduated with their graduating class.

4. Beginning with the High School Graduating Class of 2027, each grade earned for attempted coursework in English, mathematics, science, social studies, foreign language, and Advanced Fine Arts during the student's 9th, 10th, 11th, or 12th grade year that could, according to Georgia Department of Education classification, be used to satisfy a Core curriculum graduation requirement must be equated to a grade on a 4.00 scale, such that a grade of "A" equals 4.00, "B" equals 3.00, "C" equals 2.00, "D" equals 1.00, and "F" equals 0.

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5. Beginning with the High School Graduating Class of 2012, through the High School Graduating Class of 2026, each grade earned for attempted coursework in English, mathematics, science, social studies and foreign language during the student's 9th, 10th, 11th, or 12th grade year that could, according to Georgia Department of Education classification, be used to satisfy a Core curriculum graduation requirement must be equated to a grade on a 4.00 scale, such that a grade of "A" equals 4.00, "B" equals 3.00, "C" equals 2.00, "D" equals 1.00, and "F" equals 0.

6. Students that graduate from an Eligible High School, including Home Study students who receive a diploma and transcript from an Accredited High School Program, must meet rigor requirements. The rigor requirement does not extend to students completing a Home Study program who have not received a diploma and transcript from an Accredited High School Program.

4005.4. First-Tier Academic Requirements: Retroactive Eligibility.

1. A student who graduated from an ineligible high school or completed a Home Study program may receive a retroactive Zell Miller Scholarship payment for the First-Tier if such student earns at least a 3.30 Postsecondary Calculated HOPE GPA after having accumulated 30 semester or 45 quarter Attempted-Hours of Degree credit (not including any degree credit attempted prior to Home Study program completion) and meets all other Zell Miller Scholarship requirements, including the End-of-Spring and Three-Term Checkpoints.

    a. In order for such student to be eligible for Zell Miller Scholarship retroactively for the First-Tier, the student must have met Georgia Residency requirements at the time he or she completed the Home Study requirements.

    b. The student must request an eligibility determination by submitting a request and all supporting documentation to GSFC prior to the last day of the term following the term (excluding Summer term) in which 30 semester or 45 quarter hours were attempted; and

c. Have received a minimum score of 1200 combined critical reading and math score on a single National Administration of the SAT by the time of Home Study completion or an ACT composite score of 26 on a single National or State/District Administration by the time of Home Study completion. Points earned in the Essay portion shall not be included in any calculation of a Student's score.

2. Funds will not be paid retroactively for coursework taken prior to a student's petition to receive a diploma pursuant to O.C.G.A. 20-2-281.1.

4005.5. First-Tier Academic Checkpoints.

1. A First-Tier student may receive Zell Miller Scholarship payment through the school term in which he or she has accumulated at least 30 semester or 45 quarter Attempted-Hours unless such student first reaches an End-of-Spring Checkpoint or Three-Term Checkpoint with less than a 3.30 Postsecondary Calculated HOPE GPA.

2. A First-Tier student Enrolled Full-Time during at least one term must have a Postsecondary Calculated HOPE GPA of at least a 3.30 at the end of Spring term (End-of-Spring Checkpoint), in order to continue eligibility beyond Spring term.

3. A First-Tier student, who received HOPE Scholarship funds and was Enrolled less than Full-Time for each of his or her first three school terms must have a Postsecondary Calculated HOPE GPA of at least a 3.30 at the end of his or her third term (Three-Term Checkpoint), in order to continue eligibility beyond the third term.

   a. If a student has a 3.00 at the Three-Term Checkpoint, the student is eligible to continue receiving the Zell Miller Scholarship at the First-Tier until such student has accumulated 30 semester or 45 quarter Attempted-Hours (Second-Tier Checkpoint) or reaches the next End-of-Spring Checkpoint, whichever occurs first.

4. A First-Tier student who was Enrolled less than Full-Time per term during his or her first two terms, but Full-Time during his or her third term and the third term is after the End-of-Spring Checkpoint, is eligible to continue receiving the Zell Miller Scholarship at the First-Tier until such student has accumulated 30 semester or 45 quarter Attempted-Hours (Second-Tier Checkpoint) or reaches the next End-of-Spring Checkpoint, whichever occurs first.

4005.6. Second-Tier Academic Requirements.

1. A student cannot enter the Zell Miller Scholarship Program at Second-Tier if he or she was not Academically Eligible at the time of high school graduation.

2. A student must have accumulated at least 30 semester or 45 quarter Attempted-Hours, but less than 60 semester or 90 quarter Attempted-Hours and have earned a Postsecondary Calculated HOPE GPA of at least 3.30 at the end of the school term in which he or she has accumulated at least 30 semester or 45 quarter Attempted-Hours (Second-Tier Checkpoint), to remain academically eligible for Zell Miller Scholarship payment for the Second-Tier.

3. A student eligible for the HOPE Scholarship, who was Academically Eligible for the Zell Miller Scholarship at the time of his or her high school graduation, may gain Zell Miller Scholarship eligibility at the Second-Tier if the student had a minimum 3.30 GPA at his or her most recent Checkpoint and meets all other eligibility requirements.

    a. Receipt of funds at the First-Tier is not a requirement or prerequisite for eligibility at the Second-Tier.

4. A student who lost his or her Zell Miller Scholarship eligibility as a First-Tier recipient, for failure to earn at least a 3.30 Postsecondary Calculated HOPE GPA at the End-of-Spring Checkpoint or at his or her Three-Term Checkpoint and who has not yet reached the Second-Tier Checkpoint, can regain Zell Miller Scholarship eligibility for the Second-Tier if:

    a. His or her Postsecondary Calculated HOPE GPA is at least a 3.30 at the end of the school term he or she has accumulated at least 30 semester or 45 quarter Attempted-Hours (Second-Tier Checkpoint); and

    b. Such student meets all other Zell Miller Scholarship requirements; and

    c. The student has not previously lost Zell Miller Scholarship eligibility at any two Checkpoints since Fall term 2011.

4005.7. Second-Tier Academic Checkpoints.

1. A student is eligible to continue receiving the Zell Miller Scholarship at the Second-Tier through the school term he or she has accumulated 60 semester or 90 quarter Attempted-Hours (Third-Tier Checkpoint), unless such student first reaches an End-of-Spring Checkpoint with a Postsecondary Calculated HOPE GPA less than a 3.30.

4005.8. Third-Tier Academic Requirements.

1. A student cannot enter the Zell Miller Scholarship Program at Third-Tier if he or she was not Academically Eligible at the time of high school graduation.

2. A student must have accumulated at least 60 semester or 90 quarter Attempted-Hours, but less than 90 semester or 135 quarter Attempted-Hours and have earned a Postsecondary Calculated HOPE GPA of at least 3.30 at the end of the school term in which he or she has accumulated at least 60 semester or 90 quarter Attempted-Hours (Third-Tier Checkpoint), to remain academically eligible for Zell Miller Scholarship payment for the Third-Tier.

3. A student who lost his or her Zell Miller Scholarship eligibility as a First-Tier recipient, for failure to earn at least a 3.30 Postsecondary Calculated HOPE GPA at the end of the school term he or she accumulated at least 30 semester or 45 quarter Attempted-Hours (Second-Tier Checkpoint), or at the End-of-Spring Checkpoint, or at his or her Three-Term Checkpoint, can regain Zell Miller Scholarship eligibility for the Third-Tier if:

a. His or her Postsecondary Calculated HOPE GPA is at least a 3.30 at the end of the term he or she accumulated at least 60 semester or 90 quarter Attempted-Hours (Third-Tier Checkpoint); and

b. Such student meets all other Zell Miller Scholarship requirements; and

c. The student has not previously lost Zell Miller Scholarship eligibility at any two Checkpoints since Fall term 2011.

4. A student who lost his or her Zell Miller Scholarship eligibility as a Second-Tier recipient, for failure to earn at least a 3.30 Postsecondary Calculated HOPE GPA at the End-of-Spring Checkpoint and who has not yet reached the Third-Tier Checkpoint, can regain Zell Miller Scholarship eligibility for the Third-Tier if:

   a. His or her Postsecondary Calculated HOPE GPA is at least a 3.30 at the end of the term he or she accumulated at least 60 semester or 90 quarter Attempted-Hours (Third-Tier Checkpoint); and

   b. Such student meets all other Zell Miller Scholarship requirements, provided the student has not previously lost Zell Miller Scholarship eligibility at any two Checkpoints since Fall term 2011; and

   c. The student has not previously lost Zell Miller Scholarship eligibility at any two Checkpoints since Fall term 2011.

4005.9. Third-Tier Academic Checkpoints.

1. A student is eligible to continue receiving the Zell Miller Scholarship at the Third-Tier through the school term he or she has accumulated 90 semester or 135 quarter Attempted-Hours (Fourth-Tier Checkpoint), unless such student first reaches an End-of-Spring Checkpoint with less than a Postsecondary Calculated HOPE GPA of 3.30.

2. A student eligible for the HOPE Scholarship, who was Academically Eligible for the Zell Miller Scholarship, at the time of his or her high school graduation, may gain Zell Miller Scholarship eligibility at the Third-Tier if the student had a minimum 3.30 GPA at his or her most recent Checkpoint and meets all other eligibility requirements.

   a. Receipt of funds at the First-Tier and/or the Second-Tier is not a requirement or prerequisite for eligibility at the Third-Tier.

4005.10. Fourth-Tier Academic Requirements.

1. A student cannot enter the Zell Miller Scholarship Program at Fourth-Tier if he or she was not Academically Eligible at the time of high school graduation.

2. A student must have accumulated at least 90 semester or 135 quarter Attempted-Hours, but not more than 127 semester or 190 quarter Attempted- Hours and have earned a Postsecondary Calculated HOPE GPA of at least 3.30 at the end of the school term in which he or she accumulated at least 90 semester or 135 quarter Attempted-Hours (Fourth-Tier Checkpoint), to remain academically eligible for Zell Miller Scholarship payment at the Fourth- Tier.

3. A student who lost his or her Zell Miller Scholarship eligibility as a First-Tier recipient, for failure to earn at least a 3.30 Postsecondary Calculated HOPE GPA at the end of the school term he or she accumulated at least 30 semester or 45 quarter Attempted-Hours (Second-Tier Checkpoint), or at the End-of-Spring Checkpoint, or at his or her Three-Term Checkpoint, can regain Zell Miller Scholarship eligibility for the Fourth-Tier if:

    a. His or her Postsecondary Calculated HOPE GPA is at least a 3.30 at the end of the term he or she accumulated at least 90 semester or 135 quarter Attempted-Hours (Fourth-Tier Checkpoint); and

    b. Such student meets all other Zell Miller Scholarship requirements; and

    c. The student has not previously lost Zell Miller Scholarship eligibility at any two Checkpoints since Fall term 2011.

4. A student who lost his or her Zell Miller Scholarship eligibility as a Second-Tier recipient, for failure to earn at least a 3.30 Postsecondary Calculated HOPE GPA at the end of the school term he or she accumulated at least 60 semester or 90 quarter Attempted-Hours (Third-Tier Checkpoint) or at the End- of-Spring Checkpoint, can regain Zell Miller Scholarship eligibility for the Fourth-Tier if:

    a. His or her Postsecondary Calculated HOPE GPA is at least a 3.30 at the end of the term he or she accumulated at least 90 semester or 135 quarter Attempted-Hours (Fourth-Tier Checkpoint); and

    b. Such student meets all other Zell Miller Scholarship requirements; and

    c. The student has not previously lost Zell Miller Scholarship eligibility at any two Checkpoints.

5. A Zell Miller Scholarship recipient at the Third-Tier, who failed to earn a 3.30 Postsecondary Calculated HOPE GPA at an End-of-Spring Checkpoint and who has not yet reached the Fourth-Tier Checkpoint, can regain Zell Miller Scholarship eligibility if:

    a. His or her Postsecondary Calculated HOPE GPA is at least a 3.30 at the end of the term he or she accumulated at least 90 semester or 135 quarter Attempted-Hours (Fourth-Tier Checkpoint); and
    b. Such student meets all other Zell Miller Scholarship requirements; and

c. The student has not previously lost Zell Miller Scholarship eligibility at any two Checkpoints since Fall term 2011.

6. A Zell Miller Scholarship recipient at the Third-Tier, who failed to earn at least a 3.30 Postsecondary Calculated HOPE GPA at the end of the school term he or she accumulated at least 90 semester or 135 quarter Attempted- Hours (Fourth-Tier Checkpoint), cannot regain Zell Miller Scholarship eligibility.

7. A student is ineligible to continue receiving the Zell Miller Scholarship once he or she has accumulated 127 semester or 190 quarter Attempted-Hours or has accumulated 127 semester or 190 quarter Combined-Paid Hours, or has earned a Baccalaureate Degree, whichever of these limits occurs first.

8. A student who failed to earn a Postsecondary Calculated HOPE GPA of at least a 3.00 at an End-of-Spring Checkpoint after the 90 semester or 135 quarter Attempted-Hours Checkpoint, becomes permanently ineligible.

9. A student eligible for the HOPE Scholarship, who was Academically Eligible for the Zell Miller Scholarship, at the time of his or her high school graduation, may gain Zell Miller Scholarship eligibility at the Fourth-Tier if the student had a minimum 3.30 GPA at his or her most recent Checkpoint and meets all other eligibility requirements.

   a. Receipt of funds at the Second-Tier and/or Third-Tier is not a requirement or prerequisite for eligibility at the Fourth-Tier.

4005.11. STEM Courses.

1. Effective Fall term 2017, when calculating the HOPE and Zell Miller Scholarship *postsecondary* GPA, an additional weight of 0.5 will be added to grades of B, C and D for approved Degree level science, technology, engineering and mathematics (STEM) courses taken at an Eligible Postsecondary Institution, Fall term 2017 or later. The approved STEM courses will be listed in the STEM Weighted Course Directory.

   a. The Eligible Postsecondary Institution shall be responsible for including the additional weight in the HOPE and Zell Miller Scholarship GPA calculation.

   b. The Eligible Postsecondary Institution to which a student transfers must refer to the STEM Weighted Course Directory to identify the approved STEM courses to be given the additional weight and included in the HOPE and Zell Miller GPA calculation for continued eligibility.

2. Courses not included in the STEM Weighted Course Directory, or completed prior to Fall term 2017, or taken at an ineligible postsecondary institution will not receive the additional weight.

3. The STEM Weighted Course Directory is updated annually and will be available on GAfutures.org by February 1.

4. The STEM Weighted Course Council is responsible for approving all additions, deletions, and changes to the directory. The council consist of at least one (1) representative from University System of Georgia, Technical College System of Georgia, Georgia Independent College Association, Georgia Student Finance Commission, Georgia Department of Economic Development, Governor's Office of Planning and Budget, and a member of the Georgia General Assembly.

    a. Institutions requesting an addition or deletion to the STEM Weighted Course Directory shall submit such changes to their representative on the council (USG, TCSG, or GICA for all private Eligible Postsecondary Institutions) no later than October 31.

    b. Changes to the STEM Weighted Course Directory may only occur once per year.

    c. The council may add or remove critical shortage fields and the associated STEM Weighted courses as it deems appropriate.

    d. USG will convene the annual STEM Weighted Course Council meeting in December to finalize changes for the following academic year.

4005.12. Grade Changes and Incompletes.

1. A student who obtains a grade change from his or her Eligible Postsecondary Institution is eligible to have his or her Postsecondary HOPE GPA recalculated for purposes of Zell Miller Scholarship eligibility at the End-of-Spring Checkpoint, Three-Term Checkpoint, or an Attempted-Hours Checkpoint.

    a. A student previously denied Zell Miller Scholarship payment because his or her Postsecondary Calculated HOPE GPA was less than a 3.30 at one of the Checkpoints is eligible for retroactive Zell Miller Scholarship payment, if the grade change results in a Postsecondary Calculated HOPE GPA of a 3.30 or higher.

2. Degree hours appearing on a student's transcript as "incomplete", and all other situations in which grades are temporarily unavailable (i.e., overlapping terms, late grades, late transcripts from Transient coursework, etc.) must be counted when determining the student's number of Attempted-Hours, but are not included in the calculation of Quality Points when determining the Postsecondary Calculated HOPE GPA.

    a. A student's Zell Miller Scholarship eligibility should be evaluated at each Checkpoint, based on the Postsecondary Calculated HOPE GPA at that Checkpoint.

3. If a student who was denied later becomes eligible when a grade is reported, the student is eligible to receive Zell Miller Scholarship payment retroactively. The request for retroactive payment must be submitted to GSFC by the last day of the term following the term in which the grade change occurs.

a. If the student was awarded at a Checkpoint, but later becomes ineligible when the incomplete grade is removed, then Zell Miller Scholarship awards must be canceled until the next Checkpoint and the student and GSFC must be notified by the Eligible Postsecondary Institution that the student owes a repayment of the Zell Miller Scholarship funds.

b. The student owes the repayment even if it was awarded in a previous award year. The Eligible Postsecondary Institution is held harmless by GSFC for such repayment.

4005.13. Attempted-Hours Limit.

1. A student is ineligible to receive Zell Miller Scholarship payment once he or she reaches the Attempted-Hours limit of 127 semester or 190 quarter hours.

2. A student who is Enrolled in a specific Undergraduate Degree program of study that is designed by the Eligible Postsecondary Institution to require more than 127 semester or 190 quarter hours to earn a Baccalaureate Degree is ineligible to continue receiving the Zell Miller Scholarship once he or she has accumulated 127 semester or 190 quarter Attempted-Hours or has accumulated 127 semester or 190 quarter Combined-Paid Hours.

4005.14. Attempted-Hours Calculation.

1. The following postsecondary coursework is not counted in the Attempted- Hours calculation:

   a. Credit hours for any college coursework attempted by a student prior to high school graduation or Home Study completion; nor

      i. Coursework taken through the Dual Enrollment Program Fall term 2011 or later is not counted in the Attempted-Hours calculation; nor

   b. Continuing Education and Audit credit hours; nor

   c. Credit hours earned by examination or prior work experience; nor

   d. Credit hours earned as a result of military training or experience unless such hours were granted or accepted as Degree credit by any postsecondary institution that is separate and independent of the military; nor

   e. Credit hours earned for Learning Support in Fall term 2011 or later or accepted for Degree credit in Fall term 2011 or later.

2. The following postsecondary coursework is counted in the Attempted-Hours calculation:

   a. Degree credit hours, regardless of whether:

i. The course was completed, the hours were earned, or a letter grade was recorded on the student's official academic transcript.

ii. The student received payment for those hours from the Zell Miller Scholarship Program.

iii. Those hours were taken at a postsecondary institution outside the State of Georgia or at a postsecondary institution in a foreign country.

iv. Those hours were taken at an unaccredited postsecondary institution.

b. Credit hours attempted as part of a technical Certificate or Diploma program of study are only counted as Attempted-Hours if any postsecondary institution ever accepted those hours as credit hours toward a Degree.

c. A block of credit hours for coursework taken in the Certificate or Diploma program, if the student is transferring from a Certificate or Diploma program into an Associate of Applied Science (AAS) or Bachelor of Applied Science (BAS) Degree program. In order to determine the number of Attempted- Hours, the value of the block of credit hours is based on the number of hours granted as credit.

d. Courses that appear on a student's transcript with no credit hours, assign the credit hours listed in the postsecondary institution's official college catalog, if no credit hours are listed, assign three semester or five quarter credit hours.

e. Credit hours earned for Learning Support coursework prior to Fall term 2011, are counted as Attempted-Hours, if such coursework was attempted by the student while he or she was Enrolled in a Degree program or while he or she was Enrolled in a Diploma or Certificate program and the coursework was accepted as credit toward the student's Degree program prior to Fall term 2011.

4005.15. Combined Paid-Hours Limit.

1. A student is ineligible to receive Zell Miller Scholarship payment once he or she reaches the Combined Paid-Hours limit of 127 semester or 190 quarter hours from any combination of Zell Miller Scholarship or HOPE Scholarship Paid-Hours, plus HOPE or Zell Miller Scholarship Grant Paid-Hours, plus Accel Program Paid-Hours (through FY 2011).

   a. For a student enrolled at a Public Eligible Postsecondary Institution, a maximum of 15 semester or quarter hours per term is counted toward the Paid-Hours limit, even if actual enrollment is greater than 15 hours.

   b. For a student enrolled at a Private Eligible Postsecondary Institution, a maximum of 12 semester or quarter hours per term is counted toward the Paid-Hours limit, even if actual enrollment is greater than 12 hours.

4005.16. Attainment of a Baccalaureate Degree.

1. Regardless of the number of Attempted-Hours or Combined Paid-Hours a student has accumulated, such student is ineligible for Zell Miller Scholarship payment if he or she has attained a Baccalaureate Degree, at any time, from any postsecondary institution, including the equivalent of a Baccalaureate Degree from a foreign institution as indicated by the foreign academic transcript and/or foreign academic transcript translation.

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4005.17. Expiration of Eligibility Limits.

4005.17.1. Ten Year Limit.

1. A student who received his or her first HOPE Scholarship payment for Summer term 2019 or later, and meets all other eligibility requirements for HOPE Scholarship, may receive the HOPE Scholarship until June 30 following the completion of the tenth full year after the first one of the following events has occurred:

    a. His or her high school graduation date; or
    b. His or her Home Study completion date; or
    c. His or her High School Equivalency diploma date; or
    d. His or her petition date where his or her diploma was received pursuant to the local school board in accordance with O.C.G.A. § 20-2-281.

        i. A student is not eligible for payment for any term prior to his or her petition date where his or her diploma was received.

2. A student who is Enrolled during a term which begins prior to his or her expiration of eligibility date and ends after his or her expiration of eligibility date may be paid for the term.

4005.17.2. Seven Year Limit.

1. A student who received his or her first HOPE Scholarship payment between Summer term 2011 and Spring term 2019, and meets all other eligibility requirements for Zell Miller Scholarship, may receive the Zell Miller Scholarship until June 30 following the completion of the seventh full year after the first of one of the following events has occurred:

    a. His or her high school graduation date; or

    b. His or her Home Study program completion date; or

    c. His or her petition date where his or her diploma was received pursuant to the local school board in accordance with O.C.G.A. §20-2-281.

        i. A student is not eligible for payment for any term prior to his or her petition date where his or her diploma was received.

4005.17.3. Military Service Extension Request.

1. A student that serves on active duty in the United States Armed Forces during the seven or ten year period after his or her high school graduation or Home Study completion may request that active duty period of military service be added to the eligibility limit.

4005.17.4. ADA Limited Extension Request.

1. Students with a disability, as defined in the federal Americans with Disabilities Act, 42 U.S.C. Section 12102, which has prevented full-time enrollment while pursuing an undergraduate Degree, may request a limited extension from the applicable eligibility limit for additional time. In order for a student to submit an ADA limited extension request, the following criteria must be met:

    a. Have a seven year or ten year eligibility limit;
    b. Have not reached or exceeded the Attempted-Hours or Paid Hours limits;
    c. Have received the Zell Miller Scholarship and meets all eligibility requirements;
    d. Have been enrolled at a postsecondary institution each academic year unless there is a documented long-term illness;
    e. Each term of enrollment is less than full time (12 hours or more) due to the disability;
    f. Provide proper documentation by a medical professional indicating the date the disability began and the impact on the student's college academics and enrollment.

4005.17.5. No Expiration Limit.

1. A student who received his or her first HOPE Scholarship payment prior to Summer term 2011 (FY2012) is not subject to the Expiration of Eligibility Limits.

4005.17.6. Eligibility after Losing Zell Miller Scholarship at Two Checkpoints.

1. A Zell Miller Scholarship recipient who has lost Zell Miller Scholarship Eligibility at two Checkpoints cannot regain Eligibility. A student must have been receiving the Zell Miller Scholarship to be considered as having lost the Zell Miller Scholarship.

4006. Eligible and Ineligible Coursework.

4006.1. Transient Coursework.

1. A Transient student is eligible to receive Zell Miller Scholarship payment if all other eligibility requirements are met. Both the Home Institution and the Host Institution must be Eligible Postsecondary Institutions.

2. The Host Institution awards Zell Miller Scholarship funds to the Transient student based on certification of eligibility from the Home Institution.

    a. The Home Institution is responsible for verifying the eligibility of their Transient students. The Zell Miller Scholarship award must be the amount the student would normally receive at the Host Institution if he or she were a regular student.

    b. The Host Institution must report Zell Miller Scholarship payment for Transient students to GSFC in the same manner it reports Zell Miller Scholarship payments for its regular students.

        i. Upon the student's return to the Home Institution, the Home Institution must receive from the Host Institution information necessary for the Home Institution to determine continued Zell Miller Scholarship eligibility.

3. The Home Institution is liable for the return of funds the student receives at the Host Institution, if the Home Institution erroneously certifies the student's eligibility to the Host Institution.

4006.2. Distance Learning Coursework.

1. A student participating in Distance Learning coursework is eligible to receive Zell Miller Scholarship payment if all other eligibility requirements are met.

4006.3. Study Away Coursework.

1. A student Enrolled in a Matriculated status at an Eligible Postsecondary Institution is eligible to receive Zell Miller Scholarship payment while participating in a Study Away program.

2. The Home Institution must have a written agreement with the institution (foreign or non-Eligible Postsecondary Institution) or a single written arrangement with a study-abroad organization to represent an agreement between the Home Institution and the institution at which a student is participating in a Study Away program.

3. A student's Home Institution must approve the Study Away program courses for credit toward the student's Degree program prior to the student's departure.

4. The Zell Miller Scholarship award must be the amount the student would normally receive at the Home Institution for an equal number of credit hours attempted.

a. Where the actual tuition at the Host Institution is less than the Zell Miller Scholarship award rate for the Home Institution, the Zell Miller Award shall not exceed the actual tuition rate.

5. The Home Institution must maintain documentation of the student's actual tuition charges for the Study Away program at the Host Institution.

6. At the time of disbursement, a current enrollment verification for the student from the Host Institution indicating the courses and number of hours must be on file with the Home Institution.

7. The Zell Miller Scholarship payment must take place through the Home Institution. The earned Zell Miller award may be refunded to the student, if the student has prepaid the Study Away institution prior to the Zell Miller disbursement.

8. The Eligible Postsecondary Institution must have on file the student's written or electronic permission to have any specific fees withheld from the Zell Miller disbursement.

9. If the student is participating in a Study Away program administered by another Eligible Postsecondary Institution, the Transient student process described in *Section 4006.1.* of these regulations must be followed.

4006.4. Board of Regents Test Preparation Coursework.

1. A student seeking a Degree at a USG Eligible Postsecondary Institution who is required to participate in coursework to prepare for the Board of Regent's Test (Examination) is eligible to receive Zell Miller Scholarship for such coursework. Credit hours attempted for such coursework must be counted as Attempted- Hours and included in the Combined Paid-Hours limit.

4006.5. First Professional Degree Program.

1. A student enrolled in a First Professional Degree Program may receive Zell Miller Scholarship payment until such student has attempted 127 semester or 190 quarter hours.

4006.6. Joint Enrollment and Dual Credit Enrollment Coursework.

1. A student is ineligible for Zell Miller Scholarship payment for Degree coursework attempted while participating in Joint Enrollment or Dual Credit Enrollment.

2. Coursework attempted while participating in Joint Enrollment or Dual Credit Enrollment must not be counted as Attempted-Hours for a student who graduates as a Zell Miller Scholarship Scholar.

4006.7. Learning Support Coursework.

1. A student seeking a Degree who Enrolls in Learning Support coursework is ineligible for Zell Miller Scholarship payment for such coursework. Such Learning Support credit hours must not count as Attempted-Hours and toward the Combined Paid-Hours limit, except as specified in *Section 4005.14.2.e*.

4006.8. Coursework Exemptions.

1. A student is ineligible to receive Zell Miller Scholarship payment for coursework that was exempted or given credit by examination, testing, training, or experience.

4006.9. Continuing Education and Audit Coursework.

1. A student is ineligible to receive Zell Miller Scholarship payment for coursework classified by his or her Eligible Postsecondary Institution as Continuing Education or Audit coursework, and such coursework is not counted as Attempted-Hours.

4006.10. Total Withdrawal from Coursework.

1. A student is ineligible for Zell Miller Scholarship payment for coursework from which he or she totally withdrew if, as a result, such coursework does not appear on the student's academic transcript as a "W" or any other code or identification for such a withdrawal (refer to *Section 4010.1.1.a.).* Such coursework is not counted as Attempted-Hours.

4007. Student Application Requirements.

4007.1. Application Forms.

1. In order to be considered for a Zell Miller Scholarship, a student must complete one of the following application forms:

    a. GSFAPP; or

    b. Current year FAFSA.

        i. A student who applies for Zell Miller Scholarship by completing and submitting a FAFSA must complete and submit a new FAFSA for each Award Year.

2. In addition to one of these two applications, an Eligible Postsecondary Institution may require students to complete the Eligible Postsecondary Institution's application for student financial aid or other forms to provide supplemental information for the purpose of determining Zell Miller Scholarship eligibility.

3. Once a student has submitted a GSFAPP, and it has been accepted on GSFC's system as a valid application, it will remain on GSFC's system as a valid application for 120 consecutive months following the application's approval date.

    a. The student's application will remain valid during the 120 month period, regardless of whether or not an Eligible Postsecondary Institution submits a Zell Miller Scholarship invoice to GSFC on behalf of the student during the 120 month period. Upon conclusion of the 120 month period, the student's application will expire.

    b. Once an application has expired, the student will be required to submit a new application in order for a Zell Miller Scholarship invoice to be processed for the student by GSFC.

    c. If during the original application's 120 month period, the student submits to GSFC a new application for Zell Miller Scholarship, or an application for a program other than Zell Miller Scholarship, both applications will remain valid for 120 consecutive months following the second application's approval date.

    d. The above stipulations apply to all GSFAPP accepted as valid applications on GSFC's system, including such applications that were submitted to and accepted by GSFC prior to the 2008-2009 Award Year.

4007.2. Application Deadline Date.

1. A student must file a GSFAPP or FAFSA on or before the last day of the school term (semester or quarter) or the student's withdrawal date, whichever occurs first, in order to be paid for that school term.

    a. The last day of the school term is the last day of classes or exams for the Eligible Postsecondary Institution, whichever occurs later. Supplemental documentation required by the Eligible Postsecondary Institution or GSFC to support or verify a student's application information may be submitted after the deadline without jeopardizing the student's eligibility.

2. The Application Deadline Date for a student who is seeking a retroactive Zell Miller Scholarship payment, (refer to *Section 4005.4.),* is extended to the school term immediately following the school term in which he or she attempted thirty (30) semester or forty-five (45) quarter hours.

    a. Such student must file an application on or before the last day of the school term that immediately follows the school term in which he or she attempted thirty (30) semester or forty-five (45) quarter hours, or the student's withdrawal date, whichever occurs first.

3. The Application Deadline Date for a student who is seeking Zell Miller Scholarship payment retroactively due to a grade change or a grade being reported for Degree hours previously appearing on a student's transcript as incomplete (refer to *Section 4005.3.)* is extended to the school term immediately following the school term in which the grade was changed, or a grade was reported for Degree hours previously appearing on a student's transcript as incomplete.

    a. Such student must file an application on or before the last day of the school term that immediately follows the school term in which the grade was changed or reported for Degree hours, or the student's withdrawal date, whichever occurs first.

4007.3. Application for Subsequent Years.

1. It is not mandatory, except as provided for in *Section 4007.1.1.b.i.*, for a student to complete a new application for the Zell Miller Scholarship each Award Year. However, Eligible Postsecondary Institutions may have separate application requirements.

4008. Award Requirements.

4008.1. Awards at Eligible USG or TCSG Institutions.

1. The Zell Miller Scholarship Award Amount at a USG or TCSG Institution is equal to the current academic year Standard Undergraduate Tuition amount, on a per hour basis, at the Eligible Postsecondary Institution in which the student is Enrolled, up to a maximum of 15 hours per term.

   a. Any approved changes to the state scholarship or grant award amounts become effective beginning with the Fall term.

2. Where the actual Tuition rate charged for a course is less than the standard undergraduate rate, the Zell Miller Award shall not exceed the approved Zell Miller award amount, or the actual Tuition rate charged, whichever is less.

3. No award is to exceed the approved Zell Miller Scholarship per hour award amount.

4008.2. Awards at Eligible Private Postsecondary Institutions.

1. Full-Time Awards.

The Zell Miller Scholarship award amounts per semester or quarter for a Full- Time student are provided below. Any approved changes to the state scholarship or grant award amounts become effective beginning with the Fall term. A student who meets all eligibility requirements may receive payment for three semesters or four quarters for the Award Year.

Term	FY	Semester System	Quarter System
Summer 2026	27	$2,985.00	$2,034.00
Fall 2026	27	$2,985.00	$2,034.00
Winter 2027	27	Not Applicable	$2,034.00
Spring 2027	27	$2,985.00	$2,034.00
Summer 2027	28	$2,985.00	$2,034.00

2. Half-Time Awards.

The Zell Miller Scholarship award amounts per semester or quarter for a Half- Time student are provided below. Any approved changes to the state scholarship or grant award amounts become effective beginning with the Fall term. A student who meets all eligibility requirements may receive payment for three semesters or four quarters for the Award Year.

Term	FY	Semester System	Quarter System
Summer 2026	27	$1,493.00	$1,017.00
Fall 2026	27	$1,493.00	$ 1,017.00
Winter 2027	27	Not Applicable	$ 1,017.00
Spring 2027	27	$1,493.00	$ 1,017.00
Summer 2027	28	$1,493.00	$ 1,017.00

3. Per Credit Hour Awards.

a. For a student Enrolled at least Half-Time (6-11 hours) during a term in which he or she reaches the Attempted-Hours and/or the Combined Paid-Hours limit such student can only receive payment for hours up to the limit.

Hours to Reach Limit	Semester System	Quarter System
1-5	$249.00 per hour	$170.00 per hour
6-11	$1,493.00	$ 1,017.00

b. For a student Enrolled Full-Time (12 or more hours) during a term in which he or she reaches the Attempted-Hours and/or the Combined Paid-Hours limit such student can only receive payment for hours up to the limit.

Hours to Reach Limit	Semester System	Quarter System
1-11	$249.00 per hour	$170.00 per hour

c. For a student who is enrolled at two or more Eligible Postsecondary Institutions during a single term, the student can only receive payment for hours up to the term limit of 15.

	Semester System	Quarter System
Per Credit Hour	$249.00	$170.00

4008.3. Awards Per School Term.

1. The Zell Miller Scholarship is available to students for the standard school terms of Summer, Fall, and Spring semesters or Summer, Fall, Winter, and Spring quarters.

a. An Eligible Postsecondary Institution may combine mini-terms or modules to form the equivalent of a standard semester or quarter.

b. An Eligible Postsecondary Institution may offer Non-Standard Terms or Non-Terms, in which courses or modules are taken consecutively to form the equivalent of a standard semester or quarter. Regardless of the structure of an Eligible Postsecondary Institution's school terms, a student may be awarded Zell Miller Scholarship funds for a maximum of three semesters or four quarters per Award Year.

4008.4. Student Notification of Award.

1. An Eligible Postsecondary Institution must notify each Zell Miller Scholarship recipient of the amount of Zell Miller Scholarship funds he or she is awarded for the Award Year and identify such funds as a Zell Miller Scholarship award.

2. A student who wishes to decline a Zell Miller Scholarship award must do so actively. The Eligible Postsecondary Institution must maintain a record of the student's notification to the Eligible Postsecondary Institution that he or she is declining the award.

    a. A student's decision to decline the Zell Miller Scholarship award becomes final and irrevocable on the last day of the term for which the Zell Miller Scholarship award was made.

4008.5. Effect of Other Aid on Zell Miller Scholarship Eligibility.

1. Zell Miller Scholarship funds can only be applied to Tuition, not other expenses such as room and board.

2. If a student is receiving student financial aid from a source other than the Zell Miller Scholarship and such aid is required by the donor to be applied to the student's Tuition, then the student's Zell Miller Scholarship award must be reduced by the amount of such aid.

3. A student's Zell Miller Scholarship award amount for Tuition is not reduced if the student is receiving financial aid that is applied to educational expenses other than Tuition, even if the student's total aid exceeds his or her Cost of Attendance.

4009. College HOPE Eligibility Calculation Service (CHECS) Reporting Requirements.

4009.1. CHECS.

1. Effective Fall term 2018 (FY2019), all Eligible Postsecondary Institutions must comply with the College HOPE Eligibility Calculation Service (CHECS) requirements, including timely submission of all student academic transcript data for HOPE and Zell Miller Scholarship and Grant GPA calculation, checkpoint and hours.

2. All Eligible Postsecondary Institutions must utilize the College HOPE Eligibility Calculation Service (CHECS) eligibility determinations beginning Winter quarter and Spring semester 2019 (FY2019) in regard to student award determinations and disbursements.

    a. CHECS calculation records are subject to change and may not have the complete academic transcript data. Calculations are dependent upon Eligible Postsecondary Institutions submitting accurate and complete transcript data.

    b. Eligible Postsecondary Institutions are required to report cases of incomplete or conflicting academic information and should not award based on data identified as conflicting or incomplete.:

3. Eligible Postsecondary Institutions are required to obtain academic transcripts from institutions a student has attended previously with degree level coursework or coursework accepted for degree credit.

4. The Eligible Postsecondary Institution must submit, for the ending term, transcript data records, that result in CHECS calculation prior to the upcoming term invoices being paid.

    a. An invoice submitted and paid for a student that is later found to be academically ineligible due to updated transcript data records submitted in CHECS will be classified as academically ineligible. The disbursed funds for an academically ineligible invoice must be returned to GSFC or the invoice must be canceled.

5. Academic transcript data must be submitted regardless of any unpaid balance owed to the Postsecondary Institution.

6. Invoices for any term may be held in a pending status until transcript data records for the preceding term are submitted and CHECS calculations are processed.

4010. Invoicing Requirements.

4010.1. Submission of Invoices.

1. Invoices must be submitted through GSFC's online invoicing system, Scholarship Up-to-date Records for Electronic Reporting (SURFER), processed, and approved by GSFC by the Invoicing Deadline Date as established by GSFC. Each invoice submitted by the Eligible Postsecondary Institution must include Enrolled-Hours, Paid-Hours, Learning Support hours and the student's program of study information, when applicable to the program.

    a. In the event invoices are submitted to GSFC by Eligible Postsecondary Institutions after the Invoicing Deadline Date for a school term, GSFC may issue a notice of failure to meet the Invoicing Deadline Date to the President and/or governing body of the Eligible Postsecondary Institution and the invoices may not be honored.

2. Eligible Postsecondary Institutions may submit Zell Miller Scholarship invoices to GSFC as early as 15 calendar days prior to the first day of classes for the school term.

3. Invoices for any term will be held in a pending status until transcript data records for the preceding term are submitted and CHECS calculations are processed. The CHECS calculation is required to determine continued academic eligibility.

4. Prior to the beginning of any award year, and no later than June 30 of each year, GSFC shall establish and publish the Invoicing Deadline Dates for each school term for the upcoming Award Year.

5. Invoices submitted after the Invoicing Deadline Date may be honored or paid if the failure to meet the date was because of:

    a. The need for supplemental documentation required by the Eligible Postsecondary Institution or GSFC to support or verify a student's eligibility; or

    b. Late grades, late completions, grade changes; or

    c. Other adjustments made to the student's official academic transcript that resulted in a change in eligibility, and the student met all other eligibility requirements prior to the deadline.

6. The President of GSFC has sole discretion in the determination of invoice deadlines and extensions. The decision of the President of GSFC shall be final.

4010.2. Payment of Invoices.

1. Zell Miller Scholarship funds are paid to Eligible Postsecondary Institutions by electronic transfer of funds on behalf of eligible students each school term, upon submission to GSFC of a Zell Miller Scholarship invoice.

4010.3. Tuition Payments.

1. Upon receipt of Zell Miller Scholarship payments from GSFC, the Eligible Postsecondary Institution must credit the amount of payment, on behalf of an eligible student to the student's Tuition.

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4011. Return of Funds Requirements.

4011.1. Calculation of Return of Funds.

1. If a student officially withdraws, drops out, drops hours, is expelled, or otherwise fails to complete a period of Enrollment, and is entitled to a refund due to the adjustment of tuition charges, a portion of such refund may need to be returned to the Zell Miller Scholarship fund.

    a. A student is ineligible for the Zell Miller Scholarship for coursework from which he or she totally withdrew, and the coursework does not appear on the student's academic transcript as a "W" or any other code or identification for such a withdrawal.

    b. If the Eligible Postsecondary Institution invoiced GSFC prior to a student's total withdrawal in which the coursework does not appear on the transcript, then the Eligible Postsecondary Institution must cancel or return the student's Zell Miller Scholarship award for that term.

2. To determine any change to the Zell Miller Scholarship, the Eligible Postsecondary Institution must apply the institution's refund policy. If tuition is reduced, per the Institution's refund policy, the Zell Miller Scholarship award must be reduced.

    a. A USG or TCSG institution, the Zell Miller Scholarship award must be reduced by the same amount as tuition.

    b. A Private Eligible Postsecondary Institution, the percentage tuition is reduced by must be applied to the Zell Miller Scholarship award.

3. The amount of the Zell Miller Scholarship award earned is retained by the Eligible Postsecondary Institution to be applied to the tuition cost of the student for the portion of the school term that the student was enrolled.

    a. The Eligible Postsecondary Institution must adjust the student's invoice in SURFER to the new award amount within forty five (45) calendar days of the determination.

4011.2. Emergency Military Duty.

1. A student who is a member of the United States Armed Forces, National Guard, or Military Reserve Forces receiving funds from the Zell Miller Scholarship Program who is called to emergency military duty during a school term that is already in progress should not have his or her Zell Miller Scholarship eligibility negatively impacted.

2. If the Eligible Postsecondary Institution the student attends allows the student to totally withdraw and receive a grade such as "WM" for military withdrawal or the Eligible Postsecondary Institution totally removes all grades for that term and corresponding credit hours from the student's records, the Eligible Postsecondary Institution should return the full amount of the Zell Miller Scholarship award to the Zell Miller Scholarship account.

3. This regulation may also be applied to students who are not members of the military but are otherwise unusually and detrimentally affected by the emergency activation of members of the United States Armed Forces, as determined by the president of the Eligible Postsecondary Institution that such student is attending.

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4012. Reconciliation Requirements.

4012.1. Term Reconciliation.

1. Eligible Postsecondary Institutions must conduct a Term Reconciliation by the end of each term. A Term Reconciliation consists of an official acknowledgement by an authorized school official, through Postsecondary Functions that the number of students submitted for payment total invoiced, the number of invoices paid and total disbursed by GSFC to the Eligible Postsecondary Institution is accurate on that date.

    a. GSFC will not issue any state scholarship or grant funds for the following term until the Term Reconciliation is complete.

        i. Invoices in an academically ineligible status must be addressed and fully resolved before term reconciliation can be completed.

    b. Funds are not returned to GSFC as part of the Term Reconciliation process.

4012.2. Fiscal Year End Reconciliation.

1. Eligible Postsecondary Institutions must conduct the Fiscal Year End Reconciliation consisting of an official acknowledgement by an authorized school official, through Postsecondary Functions verifying, student by student, the accuracy of each invoice submitted by the Eligible Postsecondary Institution with respect to the student's Enrolled-Hours, Paid-Hours, Learning Support, academic eligibility status as determined by the CHECS calculations, and program of study information, when applicable to the program.

    a. Any pending rejected or academically ineligible invoices must be fully resolved prior to Fiscal Year End Reconciliation.

    b. Reconciliation certification forms must be completed and submitted electronically, through Postsecondary Functions by July 15, immediately following the completion of the Fiscal Year for each State Program.

    c. Return to GSFC any funds not utilized according to the Fiscal Year End Reconciliation by August 15 after the beginning of the new Fiscal Year.

    d. GSFC will not issue any state scholarship or grant funds for the Fall term until the previous Fiscal Year End Reconciliation process is complete.

    e. The Eligible Postsecondary Institution must have a procedure in place to ensure that the state scholarship and grant funds do not go to an unintended third party (i.e., state, postsecondary institution).

4013. Records Retention Requirements.

4013.1. Length of Retention.

1. An Eligible Postsecondary Institution shall maintain accurate records, books, documents and other evidence concerning the Zell Miller Scholarship Program, including, but not limited to individual student files for whichever is longer:

    a. Three years after the Award Year in which the aid was awarded; or
    b. For such other period as required by an applicable statute, rule, or regulation; or
    c. Such other time as requested in writing by GSFC.

4013.2. Documentation.

1. Documentation contained within an individual student file or record, which supports the original determination of a student's eligibility, must be retained by the Eligible Postsecondary Institution and available for review by GSFC on the Eligible Postsecondary Institution's campus, located within the State of Georgia, for at least three calendar years after the most recent Award Year for which the student received Zell Miller Scholarship funds (refer to *Section 4015.*).

2. Eligible Postsecondary Institutions are permitted to maintain these documents in an imaged media format. The imaged media format must be capable of reproducing an accurate, legible, and complete copy of the original document.

    a. Such documentation may include but is not limited to copies of permanent resident alien cards, Georgia state income tax returns, student financial aid applications and academic transcripts from previous institutions.

    b. Documentation regarding a student's eligibility is not limited to files, records, and other information received and maintained by the Eligible Postsecondary Institution's financial aid office.

    c. Documentation supporting a student's eligibility that is received and maintained by the Eligible Postsecondary Institution's admissions office, registrar's office, business office, or other administrative operations of the Eligible Postsecondary Institution must be available to GSFC for the purpose of Compliance Reviews.

3. It is the Eligible Postsecondary Institution's responsibility to resolve any inconsistencies or conflicting information within a student's records, prior to awarding or disbursing Zell Miller Scholarship funds to the student.

4013.3. Extended Retention.

1. An Eligible Postsecondary Institution may be required to retain student records involved in a Compliance Review Audit or investigation for more than the three- year retention period set forth in *Section 4013.1*. If the three-year retention period expires before the issue in question is resolved, the Eligible Postsecondary Institution must continue to retain all associated records until resolution is reached.

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4014. Administrative Reviews and Exceptions.

1. As provided by this section, a student may request an Administrative Review of the application of a Zell Miller Scholarship rule, policy or regulation if the student believes such rule, policy or regulation was incorrectly or improperly applied or a student may request an Exception to a Zell Miller Scholarship rule, policy or regulation if there are exceptional circumstances warranting the request.

4014.1. Administrative Reviews.

1. The Zell Miller Scholarship regulations are applied to each student considered for Zell Miller Scholarship funds by appropriate officials of Eligible Postsecondary Institutions and by the administrative staff of GSFC.

2. If a student believes a Zell Miller Scholarship rule or regulation was incorrectly applied in his or her case, the student has the right to file a request for an Administrative Review with GSFC.

3. In order for a request for an Administrative Review to be considered, the student must submit a written request for an Administrative Review to GSFC's office within forty-five (45) calendar days of receiving notice of denial from the Eligible Postsecondary Institution or GSFC. If additional information is requested from the student, it must be provided within the time frame specified by GSFC.

    a. GSFC will review the case and determine whether the rule or regulation was applied correctly and notify the student and Eligible Postsecondary Institution of the determination.

    b. GSFC decides a case based only on documentation provided, rather than a personal presentation.

4014.2. Requesting an Exception.

1. The Board of Commissioners of GSFC may grant a Zell Miller Scholarship award to a student who fails to meet the regulatory requirements for Zell Miller Scholarship funds in very limited and exceptional cases, as provided by *Section 4014.3* Guidelines for Approval of an Exception Request. The Board of Commissioners has sole discretion to grant an Exception based on the circumstances presented by a student who has incurred a loss of Zell Miller Scholarship eligibility.

    a. No student has the right to a Zell Miller Scholarship award under any circumstances described in *Section 4014.4*.

    b. No student has the right to appeal the denial of an Exception by the Board of Commissioners.

c. Each individual Zell Miller Scholarship recipient is limited to one Exception, as granted by the Board of Commissioners, and such Exception shall only apply to one school term, during which Zell Miller Scholarship funds were received.

d. The authority of the Board of Commissioners to grant Exceptions, hereunder, extends only to the determination of Attempted-Hours and/or Paid-Hours, and only to the extent such Exceptions would not be contrary to state law. The Board of Commissioners does not have authority to revise a student's Postsecondary Calculated HOPE GPA or waive the requirements that a student attain or maintain a specific Postsecondary Calculated HOPE GPA as otherwise required herein or by law.

2. Exceptions may be granted for extenuating circumstances such as:

a. Serious Illness, Psychiatric Disorder, or Serious Injury experienced by the student; or

b. Death of an Immediate Family Member and/or stepparent, stepchild or stepsibling; or

c. Immediate Family Member and/or stepparent, stepchild or stepsibling experienced a Serious Illness, Psychiatric Disorder, or Serious Injury and the student had to provide temporary care of the family member.

d. In cases where Serious Illness, Psychiatric Disorder or Serious Injury is the basis for an Exception request, the Serious Illness must have been treated, Psychiatric Disorder must have been diagnosed, or Serious Injury must have been sustained within the six months immediately preceding the student's official date of withdrawal from the academic term for which the Exception is being requested.

e. In cases where death of a family member, as listed above, is the basis for an Exception request, the family member's death must have occurred within the six months immediately preceding the student's official date of withdrawal from the academic term for which the Exception is being requested.

3. The GSFC Board of Commissioners' decision to approve or deny an Exception request is final and cannot be appealed. In order for an Exception to be considered:

a. A student who withdrew completely from a term and lost eligibility at a Checkpoint must submit a written request for an Exception no later than the last day of the term of re-enrollment.

b. A student who previously withdrew completely from a term but did not lose eligibility and is reaching the Attempted-Hours or Paid-Hours limit, must submit a written request for an Exception during the term in which the student has reached or is within 15 hours of the Attempted-Hours and/or Paid-Hours Limit.

c. Omission of documentation or incomplete requests may not be considered by the GSFC Board of Commissioners and may result in an automatic denial.

d. Requests for an Exception may be submitted to GSFC via US mail, email, or hand delivery. All required documentation must be provided at the time of submission.

4. Items required to be considered for an Exception by GSFC must be received by close of business on the deadline date listed below. These items are to be received by GSFC in one complete packet. Incomplete packets may not be considered. In some cases, it may be necessary to wait until the next board meeting to convene before a decision can be rendered.

   a. Deadline Submission Dates

Submission Deadline	**Board Meeting**
First Friday in July	August
First Friday October	November
First Friday in January	February
First Friday in April	May

5. GSFC staff shall review each request for Exception to determine whether such request satisfies the Guidelines for Approval of an Exception Request set forth in *Section 4014.3*.

   Each request for Exception that has been determined by GSFC staff to satisfy the Guidelines for Approval of an Exception Request set forth in *Section 4013.3.*, shall be summarized by staff and presented to the Public Policy and Law Committee of the Board of Commissioners. The requests for Exceptions shall be approved or denied by the Public Policy and Law Committee. The Committee's decisions are then presented to the full Board for approval or denial.

   a. GSFC staff will notify the student of the Board of Commissioners' decision within seven calendar days of the approval or denial.

   b. The Board of Commissioners has heretofore authorized staff to deny, on its behalf, each request for Exception that has been determined by GSFC to fall within the Guidelines for Denial of an Exception Request set forth in *Section 4013.4*. Such requests for Exception shall not be presented to the Public Policy and Law Committee of the Board of Commissioners, unless the student, having been informed of the denial, shall have requested that such request be submitted to the Public Policy and Law Committee, by the deadline set forth in *Section 4014.2.4*. above.

6. Exceptions granted by the Board of Commissioners shall provide for the forgiveness of postsecondary Attempted-Hours and/or Paid-Hours, but:

a. In no case or circumstance shall a student's postsecondary grade(s), as determined by the student's postsecondary institution, be forgiven or altered by the Board of Commissioners.

b. Under no circumstances, shall an Exception be made regarding student data submitted to GSFC by a student's high school for purposes of determining the student's eligibility for a Zell Miller Scholarship.

4014.3. Guidelines for Approval of an Exception Request.

1. GSFC staff, in its summary, shall classify each request for an Exception based on the information presented. The classifications are for guidance only. Final approval or denial of an Exception request is subject to the Board's sole discretion. The classifications are based on the following guidelines:

A1Z Requests for an Exception may be granted for a Zell Miller Scholar who has reached a Checkpoint and lost Zell Miller Scholarship eligibility without yet earning a Postsecondary Calculated HOPE GPA or a student who has reached an Attempted-Hours Checkpoint for entry into the Zell Miller Scholarship Program without yet earning a Postsecondary Calculated HOPE GPA, where such failure to earn a Postsecondary Calculated HOPE GPA is the result of having withdrawn from, or taken Incompletes, in all coursework during a term due to an extenuating circumstance listed in *Section 4014.2.2*.

1. This Exception provides for Zell Miller Scholarship retroactive payment from the point at which the student lost Zell Miller Scholarship eligibility or from the point at which the student reached an Attempted-Hours Checkpoint for entry into the program if the student has at least a 3.30 Postsecondary Calculated HOPE GPA after attempting 12 hours of coursework for which he or she received letter grades (A=4.00, B=3.00, C=2.00, D=1.00, F=0.0).

2. The Attempted-Hours and/or Paid-Hours from which the student withdrew may be forgiven if the student's total length of eligibility for Zell Miller Scholarship is extended.

A2Z Requests for an Exception may be granted for a Zell Miller Scholarship recipient who completely withdrew from all courses during a term and has exceeded the Attempted-Hours and/or Paid-Hours limit for the Zell Miller Scholarship or has 15 semester hours or less remaining to reach the Attempted-Hours and/or Paid-Hours limit. By forgiving the hours from which the student withdrew, the student's total length of eligibility for Zell Miller Scholarship is extended, if:

1. The student experienced an extenuating circumstance listed in *Section 4014.2.2*; and

2. The student remains academically eligible to receive the Zell Miller Scholarship.

A3Z Requests for an Exception may be granted for a Zell Miller Scholarship recipient who lost Zell Miller Scholarship eligibility at a Checkpoint due to a complete withdrawal from a term, if:

1. The student experienced an extenuating circumstance listed in *Section 4014.2.2*; and

2. The student has at least a 3.30 Postsecondary Calculated HOPE GPA at the new Attempted-Hours Checkpoint (withdrawal hours not included).

    a. By forgiving the Attempted-Hours and/or Paid-Hours from which the student withdrew, the student's Attempted-Hours Checkpoint is delayed by a term or terms and the student's total length of eligibility for a Zell Miller Scholarship is extended. In this circumstance, it is necessary to wait for another term or terms of grades to be posted to determine, if:

        i. The student achieves at least a 3.30 Postsecondary Calculated HOPE GPA at the new Attempted-Hours Checkpoint (once hours are forgiven); and

        ii. The student is eligible to retain a Zell Miller Scholarship and to be reimbursed from the point at which the student lost his or her Zell Miller Scholarship eligibility.

A4Z Requests for an Exception may be granted for a Zell Miller Scholarship recipient who lost Zell Miller Scholarship eligibility at an Attempted-Hours Checkpoint or exceeded the Attempted-Hours and/or Paid-Hours limit during a term with a partial withdrawal, if:

1. The student experienced an extenuating circumstance listed in *Section 4014.2.2* and the Eligible Postsecondary Institution made it compulsory for the student to withdraw from a course(s); and

2. The student has at least a 3.30 Postsecondary Calculated HOPE GPA at the new Attempted-Hours Checkpoint (once hours are forgiven and all "incomplete" grades are reported).

    a. By forgiving the Attempted-Hours and/or Paid-Hours from which the student withdrew, the student's Attempted-Hours Checkpoint is delayed by a term or terms and the student's total length of eligibility for a Zell Miller Scholarship is extended. In this circumstance, it is necessary to wait for another term or terms of grades to be posted to determine, if:

        i. The student achieves at least a 3.30 Postsecondary Calculated HOPE GPA at the new Attempted-Hours Checkpoint (withdrawal hours not included); and

ii. The student is eligible to retain a Zell Miller Scholarship and to be reimbursed from the point at which the student lost his or her Zell Miller Scholarship eligibility.

A5Z Requests for an Exception may be granted for a Zell Miller Scholarship recipient who lost his or her Zell Miller Scholarship eligibility at an End-of-Spring or Three-Term Checkpoint with a Postsecondary Calculated HOPE GPA greater than 0.00 but less than 3.30 or exceeded the Attempted-Hours and/or Paid-Hours limitations during a term with a partial withdrawal, if:

1. The student experienced an extenuating circumstance listed in *Section 4014.2.2* and the Eligible Postsecondary Institution made it compulsory for the student to withdraw from a course(s); and

2. The student has at least a 3.30 Postsecondary Calculated HOPE GPA at the next Attempted-Hours Checkpoint (withdrawal hours not included and all "incomplete" grades are reported).

   a. By forgiving the Attempted-Hours and/or Paid-Hours from which the student withdrew the student's total length of eligibility for the Zell Miller Scholarship is extended.

      i. In this circumstance, it is necessary to wait for another term or terms of grades to be posted to determine if the student achieves at least a 3.30 Postsecondary Calculated HOPE GPA at the next Attempted-Hours Checkpoint (withdrawal hours not included).

A6Z Requests for an Exception may be granted for a Zell Miller Scholarship recipient who withdrew from all courses during a term because the student was required to report for active duty service in the United States Armed Forces outside the state of Georgia or for deployment overseas, so that by forgiving the Paid-Hours from which the student withdrew, the student's total length of eligibility for Zell Miller Scholarship is extended, if:

1. The student can show that his or her active service began during the term from which he or she withdrew; and

2. The student remains academically eligible to receive the Zell Miller Scholarship.

4014.4. Guidelines for Denial of an Exception Request.

1. GSFC staff, in its summary, shall classify each request for an Exception based on the information presented. The classifications are for guidance only. Final approval or denial of an Exception request is subject to the Board's sole discretion. The classifications are based on the following guidelines:

D1Z If it is Mathematically Impossible for the student to have at least a 3.30 Postsecondary Calculated HOPE GPA at the new 30- 60- or 90- semester-hour (45- 90- or 135-quarter-hour) Zell Miller Scholarship Checkpoint, even after withdrawal hours are forgiven.

D2Z If the student does not provide a request for an Exception in writing as set forth in section 4014.2.3.

D3Z If the basis of the request is the diagnosis of or presence of a learning disability.

D4Z If the underlying cause for the student's request for an Exception is attributed to a criminal act committed by the student, that resulted in a conviction or a plea of guilty or nolo contendere.

D5Z If the basis of an Exception request is to have a student's postsecondary grade(s), as determined by the student's postsecondary institution, forgiven or altered by the Board of Commissioners.

D6Z If the basis of the request is student data submitted to GSFC by a student's high school for purposes of determining the student's eligibility for a Zell Miller Scholarship.

D7Z If the basis of the request is a Serious Illness, Serious Injury or Psychiatric Disorder that was not sustained, diagnosed or treated within the six months immediately preceding the student's official date of withdrawal from the academic term for which the Exception is being requested.

D8Z If the basis of the request is the death of an Immediate Family Member and/or stepparent, stepchild or stepsibling, and the death did not occur within the six months immediately preceding the student's official date of withdrawal from the academic term for which the Exception is being requested.

D9Z If the student did not receive HOPE Scholarship or Zell Miller Scholarship funds during the term of withdrawal.

D10Z If the request seeks an Exception from the laws governing the Zell Miller Scholarship Program.

D11Z If the student is still beyond the Attempted-Hours and/or Paid-Hours limit even if the hours from which the student withdrew are forgiven.

D12Z If the basis of the request is a reason other than those specifically listed in *Section 4014.3*.

4015. Compliance Reviews.

4015.1. Compliance Review Policy.

1. GSFC shall conduct Compliance Reviews of Eligible Postsecondary Institutions participating in the Zell Miller Scholarship Program in order to assess institutional administration of the program and compliance with the program's regulations. Such Compliance Reviews shall be conducted no less frequently than once every three years in accordance with GSFC's *Compliance Review Process and Procedures* document, which is available at gsfc.georgia.gov, under *Information for School Compliance*.

4015.2. Compliance Review Process.

1. GSFC selects a sampling of the Eligible Postsecondary Institution's Zell Miller Scholarship recipients for the Award Year under review, and the Eligible Postsecondary Institution's files and records for the sample are examined to assure compliance. Records which document and support a student's eligibility must be available for review at the Georgia campus of the Eligible Postsecondary Institution (refer to *Section 4013*.).

    a. GSFC will exclude Residency determinations as they relate to *Section 4004.2.1,* and SAP determinations made for Zell Miller Scholarship recipients, in the selected sample of any USG or TCSG institution that has submitted a signed certification to GSFC's Compliance Department by the President of the Eligible Postsecondary Institution that:

        i. The Eligible Postsecondary Institution is in compliance with its policies and procedures in the determination and the administration of the financial aid award process relative to Residency requirements and SAP; and

        ii. The Residency and SAP determinations have been fairly and consistently applied with respect to all students receiving the Zell Miller Scholarship award.

    b. Such certification must be submitted annually to the Compliance Department of GSFC in the format required by GSFC.

        i. Failure to provide such certification will result in a review of Residency determinations and SAP determinations made for Zell Miller Scholarship recipients in the selected sample.

4015.3. Institutional Repayment.

1. In the event it is determined that an Eligible Postsecondary Institution knowingly, or through error, certified an ineligible student to be eligible for Zell Miller Scholarship, the amount of such scholarship shall be refunded by the Eligible Postsecondary Institution to GSFC.

2. GSFC may suspend an Eligible Postsecondary Institution from receiving Zell Miller Scholarship payments if it fails to timely refund any monies deemed due based on the Compliance Review.

3. Any person who knowingly makes or furnishes any false statement or misrepresentation, or who accepts such statement or misrepresentation knowing it to be false, for the purpose of enabling an ineligible student to wrongfully obtain a Zell Miller Scholarship award shall be guilty of a misdemeanor.

4. If evidence not available at the time of awarding indicates that a student should not have received the Zell Miller Scholarship payment, then all future Zell Miller Scholarship awards for that student must be canceled.

    a. The Eligible Postsecondary Institution is held harmless by GSFC, if the student's file is adequately documented with available evidence and it is determined by GSFC that the Eligible Postsecondary Institution was not at fault.

    b. Evidence is considered unavailable at the time of awarding if it is not available in the student's institutional files (i.e., financial aid, admissions, registrar, etc.).

5. The Eligible Postsecondary Institution must notify the student and GSFC of a refund due to GSFC.

6. The student will be ineligible to receive additional state aid from GSFC until the repayment is paid in full, in accordance with *Section 4011.2.*

7. If GSFC determines the student's file is not adequately documented, the Eligible Postsecondary Institution may be solely responsible for the repayment.